

WITNESS STATEMENT

Criminal Justice Act 1967, s.9

Statement of	Gareth Huw PYLE
Age	Over 18 (d.o.b. 11.01.1977)
Occupation	Advanced scaffolder / chargehand, TowerLine Access Ltd. CISRS advanced card 41-77104.
Address	Withheld — supplied to the court under CPR 16 / CrimPR 16.4
Taken by	HM Inspector K. Ormerod-Suss
Date	21 November 2023, 14:10–15:35, at TowerLine Access Ltd, Wetherby depot
Status at time of statement	Witness. Not cautioned. No legal representative present. Mr Pyle was accompanied by Mr T. Braithwaite-Oyelaran, TowerLine contracts manager, who remained in the room throughout at Mr Pyle's request.
Exhibits produced	GP/1 (copy scaffold inspection and handover record ref. TL/BW/INSP/113)

This statement (consisting of 3 pages each signed by me) is true to the best of my knowledge and belief and I make it knowing that, if it is tendered in evidence, I shall be liable to prosecution if I have wilfully stated in it anything which I know to be false or do not believe to be true.

1. I am a chargehand scaffolder employed by TowerLine Access Ltd. I have held an advanced CISRS card since 2006. I was the appointed competent person for statutory inspections of the east and south elevation scaffolds at Brackenmoor Wharf.
2. I erected, or supervised the erection of, loading bays LB-6 and LB-7 during the week commencing 6 November 2023. They were built to drawing SD-BW. I could not tell you which revision letter was on the drawing in the cabin. We work off the drawing that is in the cabin.
3. I carried out the seven-day statutory inspection of the east elevation on Monday 13 November 2023. I started at about half past three in the afternoon and finished about half past four.
4. The scaffold was in good order. The ties were in. The loading bays were properly formed with the correct tube and fittings and the correct bracing. I recorded the inspection on the company tablet using the TowerLine inspection application and I also signed the paper handover for Meridian. That is exhibit GP/1. I confirm my signature on it.
5. On GP/1 I have recorded ‘Ties: satisfactory’ and ‘Loading bay LB-7: satisfactory’ and under comments I have put ‘none’. That is an accurate record of what I found. If there had been ties missing I would have written it down and I would have put a defect on and I would have refused the handover. I have done that on other jobs and I would have done it here.
6. I have been asked whether I told anyone that ties were missing at level 6 and level 7 on the east end. I did not, because there were no ties missing. I did not say anything of that sort to Deniz Aksoy or to anyone else. If Deniz says I did, he is mistaken. He was on a lot of painkillers.
7. I have been asked whether I had a telephone conversation on the afternoon of 13 November 2023 about the inspection record. I do not recall any such conversation. I speak to Ruaridh Delacroix-Hale most days. I could not tell you what we spoke about on that particular afternoon.
8. I have been asked whether anyone asked me to change or amend the inspection record. No. Nobody has ever asked me to do that on this job or any other.
9. I have been asked whether I am aware of a second version of the inspection record. I am not. There is one record. It is GP/1.
10. On Tuesday 14 November 2023 I was on site all morning. I was working on the south elevation at low level. I did not go up the east elevation that morning. I heard the collapse. I did not see it happen.
11. I have been asked about the loading of LB-7. Loading is not my responsibility. Once the bay is handed over it is Meridian’s to load. We put a sign on with the safe working load. I would have to check the drawing for the figure. My recollection is that the bays were a tonne. It might have been more on the lower ones.
12. I have been asked about the wind on 14 November 2023. It was breezy. It was not exceptional. We were working. If it had been dangerous I would have come down.

13. I have been asked whether I have discussed my evidence with anyone. I have discussed it with Mr Braithwaite-Oyelaran of TowerLine, who is present. I have not discussed it with anyone at Meridian.
14. I am extremely sorry about what happened to Tomasz. I did not know him personally. He was one of the agency lads.

Signed:

G. H. Pyle

Name / role:

G. H. Pyle — Witness

Date:

21 November 2023

Note:

Countersigned K. Ormerod-Suss. Note by Inspector: the witness was visibly distressed at paragraphs 6 and 14. The witness was asked twice whether he wished Mr Braithwaite-Oyelaran to leave and declined on both occasions.